



Case Decision

Décision du jury

As of SAT 27 JUL 2024 at 17:44

CASE No. 2

Event: Men's Skiff	Race:
Initiator: Technical Committee	Respondent: BRA (R1)
Protest details: At approx. 1700 on 26/07/2024 BRA Men's Skiff was observed from the Technical Committee office being worked on by the crew. The TC approached BRA and asked what work was being undertaken and were informed that they were polishing the hull and the product was shown to the TC. The 49er Class Rules specify the extent of modifications, maintenance and repairs that may be undertaken, and do not specifically permit the work being undertaken on the BRA Men's Skiff. The 49er Class Rules are Closed Class Rules where anything not specifically permitted is prohibited.	
Procedural matters: 1. The Technical Committee was represented by Rob Taylor. 2. Men's Skiff BRA was represented by Ricardo de Queiroz Lobato (rules advisor of BRA). 3. Marco Soffiatti Graef (helm of BRA), Rozenn le Corre Epouse l'Her (the Technical Committee member) and Frederique Pfeiffer (the Technical Committee member) attended the hearing as observers.	
Facts found: 1. On 23 July 2024 at 11:00, BRA undergone the pre-race inspection. 2. On 26 July 2024 at approximately 17:00, the crew of BRA was observed by the Technical Committee member polishing the port side of the hull with the product named Star Brite Polish Super Protecteur. 3. BRA believed that their work was made only to keep the boat in a manufacture condition and was done 2 days before scheduled racing. 4. The Technical Committee stated that polishing the hull is considered as a modification. 5. NoR 1.9 states that RRS 78.1 is changed so that athletes are responsible for ensuring that their boat is maintained in accordance with the Class Rules. 6. NoR 1.10 states that each boat is required to comply with RRS 78.1 and the Equipment Rules from the time of its pre-race equipment inspection onwards. 7. The 49er Class Rules C.6.1 and C.7.1 specify the extent of modifications, maintenance and repairs that may be undertaken, and do not specifically permit the work that was made on BRA's boat. 8. As per Introduction of the document, the 49er Class Rules are Closed Class Rules where anything not specifically permitted is prohibited.	



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Conclusion:

1. By undertaking a maintenance not specifically allowed by the Class Rules, BRA broke C.6.1 and C.7.1.
2. By undertaking work not permitted by Class Rules after the pre-race inspection, BRA broke NOR 1.9, 1.10 and ER 1.7.

Rule(s) applicable:

NoR 1.9, 1.10; ER 1.7; CR C.6.1 and C.7.1

Decision:

Using the DP Policy a starting penalty of 50% was decided.

The penalty was decreased because there was possible but not significant effect on performance and BRA did not attempt to conceal the breach.

There were no circumstances to justify increasing the penalty.

BRA is penalized 30% applied to race 1, calculated to the nearest tenth of a point, (0.05 to be rounded upward), but not worse than the score for DNF.

Jury:

Jacob Andersen (DEN), Iskra Yovkova (BUL), Luke Scott (RSA), Masaaki Tanaka (JPN), Anastazja Lewandowska (POL)

Signed:

Jacob Andersen, Chairman

Decision Issued: 27 JUL 2024 Time: 15:52

Legend:

DNF Did Not Finish

No. Number